

CHAPTER 20.

An Act to make better provision for the measurement of electricity supplied by authorised undertakers. [29th May 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Not later than the appointed day the Electricity Commissioners shall appoint and thereafter keep appointed a sufficient number of competent and impartial persons as meter examiners who shall be charged with the examination and certifying of meters used or intended to be used in connection with the supply of electricity by authorised undertakers, and such meter examiners shall comply with any directions given by the Electricity Commissioners as to the exercise and performance of their powers and duties. Appoint-
ment of
examiners,
&c.

(2) Any officer or servant appointed by the Electricity Commissioners under subsection (7) of section one of the Electricity (Supply) Act, 1919, may be appointed to act as a meter examiner. 9 & 10 Geo. 5.
c. 100.

(3) The Electricity Commissioners may prescribe the fees to be paid to meter examiners by any consumer or the undertakers as the case may be in respect of the certifying or examination of any meter and may prescribe different fees in relation to different areas:

Provided that any fees taken by a meter examiner being also an officer or servant of the Electricity Commissioners appointed under subsection (2) of this section shall be paid by him into the fund established by the Electricity Commissioners under subsection (3) of section twenty-nine of the Electricity (Supply) Act, 1919.

(4) Subject as hereinafter provided, meter examiners appointed under this Act shall have the powers and duties in relation to meters which are conferred or imposed on electric inspectors by sections fifty, fifty-one and fifty-seven of the Schedule of 1899 and such powers and

duties shall cease to be exercised by electric inspectors accordingly, and the said sections fifty, fifty-one and fifty-seven shall have effect in relation to meters as if references to a meter examiner appointed under this Act were substituted for references to an electric inspector under the Special Order, to an electric inspector appointed under the Special Order or to an electric inspector :

Provided that this subsection shall, in its application to the administrative county of London, have effect as if for the words " fifty-one and fifty-seven ", in each place where those words occur in this subsection, there were substituted the words " and fifty-one ".

Apparatus
for meter
testing, &c.

2.—(1) Subject as hereinafter provided, it shall be the duty of any authorised undertakers to provide, and to maintain in proper condition, such suitable apparatus as may be prescribed or approved by the Electricity Commissioners for the examination, testing and regulating of meters used or intended to be used in connection with the supply of electricity by those undertakers, and to afford to meter examiners appointed under this Act all necessary facilities for the use of the said apparatus for the purpose of the exercise and performance of their powers and duties in relation to such meters as aforesaid :

Provided that the Electricity Commissioners, if satisfied with respect to any authorised undertakers that any such apparatus provided by some other person is available for the purpose of the examination, testing and regulating of such meters as aforesaid, and that satisfactory arrangements have been or are about to be made for the use of the apparatus for that purpose by the said undertakers, may by order direct that this subsection shall not apply to those undertakers; and any such order may be revoked by a subsequent order of the Commissioners without prejudice to the making of a new order.

(2) Any two or more authorised undertakers may with the approval of, and shall if required by, the Electricity Commissioners enter into and carry into effect arrangements—

(a) for the provision of such apparatus as aforesaid by one or more of the parties to the arrangements

for the use of the parties thereto or any of them; and

- (b) for the examination, testing and regulating, by the party providing any apparatus as aforesaid, of meters used or intended to be used in connection with the supply of electricity by the other parties or any of them;

and may enter into, and carry into effect, arrangements for the repairing and reconditioning by any party to the arrangements of meters used or intended to be used in connection with the supply of electricity by the other parties or any of them.

Any such arrangements as aforesaid shall be made on such terms and conditions as may be agreed between the parties or, if the arrangements are entered into in pursuance of a requirement of the Electricity Commissioners, on such terms and conditions as may, in default of such agreement, be settled by the Commissioners.

(3) So long as there are in force any such arrangements as aforesaid for the provision of apparatus by any authorised undertakers, those undertakers shall have the same duties under subsection (1) of this section in relation to the meters which they are required by the arrangements to examine, test and regulate, as they have under that subsection in relation to meters used or intended to be used in connection with the supply of electricity by the undertakers themselves.

(4) The provision of capital for the purpose of exercising or performing any of their powers or duties under this section shall be a purpose for which any authorised undertakers, being a local authority, joint electricity authority or joint board, may borrow.

3.—(1) Subject as hereinafter provided, every meter to which this section applies shall be deemed for all purposes to be a proper meter for ascertaining the value of the supply, and the register of any such meter shall be evidence, but, save where the consumer has proceeded under subsection (2) of this section and there is a final and binding decision under that subsection, not conclusive evidence, of that value, and the Schedule of 1899 shall apply in relation to any such meter as

Transitional
provisions
as to exist-
ing meters.

aforsaid as if it were a certified meter within the meaning of that Schedule :

Provided that section fifty-seven of the said Schedule shall not apply in relation to any meter to which this section applies.

(2) Where any difference arises between any consumer and any authorised undertakers as to whether a meter to which this section applies (whether belonging to the consumer or to the undertakers) is or is not in proper order for correctly registering the value of the supply or as to whether that value has been correctly registered in any case by such a meter, then, if the consumer desires that the difference should be determined under this subsection, he may serve a written notice to that effect upon the undertakers, and in that event the difference shall be determined by such meter examiner appointed under this Act as may be designated by the Electricity Commissioners and the meter examiner may also direct by which of the parties the costs of and incidental to the proceedings before him shall be paid, and his decision shall be final and binding on all parties :

Provided that the preceding provisions of this subsection shall in their application to the administrative county of London have effect as if for any reference in those provisions to a meter examiner appointed under this Act there were substituted a reference to an electric inspector within the meaning of the Schedule of 1899, or, where the local authority are the consumers, to an inspector appointed by the Electricity Commissioners.

(3) This section shall apply to every meter installed on the premises of an ordinary consumer for the purpose of ascertaining the value of the supply, being a meter which has been installed on those premises for that purpose before the appointed day (except any meter which is a certified meter within the meaning of the Schedule of 1899, or is the subject of a special agreement between the consumer and the undertakers), but shall cease to apply to any meter at the time when it is first disconnected and removed after the beginning of the appointed day, or at the expiration of ten years from the beginning of that day, whichever first occurs, except in so far as it may be material for the purposes of any proceedings (including proceedings under subsection (2)

of this section) to determine whether or not the meter has correctly registered the value of the supply in any previous period.

(4) In this section the expressions “consumer” and “the value of the supply” have respectively the same meanings as in the Schedule of 1899.

4.—(1) In this Act unless the context otherwise Definitions.
requires—

“The appointed day” means such day as the Minister of Transport may by order appoint;

“The Schedule of 1899” means the Schedule to the Electric Lighting (Clauses) Act, 1899 53 & 54
(as amended by any subsequent Act) as Vict. c. 19.
incorporated with any Act or Order passed or confirmed whether before or after the passing of this Act.

(2) Any reference in this Act to the Schedule of 1899 or to any provision of that Schedule shall be construed as including a reference to any corresponding provision of any Act or Order which does not incorporate that Schedule or that provision thereof, as the case may be.

5.—(1) This Act may be cited as the Electricity Short title,
Supply (Meters) Act, 1936, and shall be construed as citation,
one with the Electricity (Supply) Acts, 1882 to 1935, repeal and
and those Acts and this Act may be cited together as the extent.
Electricity (Supply) Acts, 1882 to 1936.

(2) In subsection (1) of section thirty-six of the Schedule of 1899 the words “the certifying and examination of meters” are hereby repealed, and so much of section fifty-seven of the said Schedule as makes provision with respect to the appointment and functions of an inspector in a case where the local authority are the consumers shall cease to have effect except in relation to the administrative county of London.

(3) This Act shall not extend to Northern Ireland.